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GOVERNMENT OF INDIA
MINISTRY OF FINANCE
(DEPARTMENT OF REVENUE)

Notification No. 09/2024-CUSTOMS (ADD)

New Delhi, the 13th June, 2024

G.S.R. ...(E). – Whereas, in the matter of ‘Poly Vinyl Chloride Paste Resin’ (hereinafter referred to as the subject goods), falling under tariff items 3904 10 10, 3904 10 20, 3904 10 90, 3904 21 00, 3904 22 00, 3904 30 10, 3904 30 90, 3904 90 00, 3904 40 00 and 3904 90 90 of the First Schedule to the Customs Tariff Act, 1975 (51 of 1975) (hereinafter referred to as the Customs Tariff Act), originating in or exported from China PR, Korea RP, Malaysia, Norway, Taiwan and Thailand (hereinafter referred to as the subject countries) and imported into India, the designated authority *vide* its preliminary findings No. 6/17/2023-DGTR, dated the 26th April, 2024, published in the Gazette of India, Extraordinary, Part I, Section 1, dated the 26th April, 2024, has provisionally concluded that-

- (i) the product under consideration that has been exported to India from the subject countries are at dumped prices;
- (ii) there is substantial increase in imports of subject goods from the subject countries in both absolute terms and in relation to production and consumption;
- (iii) the material injury suffered by the domestic industry has been caused by the dumped imports from the subject countries,

and has recommended imposition of provisional anti-dumping duty on imports of the subject goods, originating in, or exported from the subject countries and imported into India, in order to remove injury to the domestic industry.

Now, therefore, in exercise of the powers conferred by sub-section (2) of section 9A of the Customs Tariff Act read with rules 13 and 20 of the Customs Tariff (Identification, Assessment and Collection of Anti-dumping Duty on Dumped Articles and for Determination of Injury) Rules, 1995, the Central Government, on the basis of the aforesaid findings of the designated authority, hereby imposes on the subject goods, the description of which is specified in column (3) of the Table below, falling under the tariff item of the First Schedule to the Customs Tariff Act as specified in the corresponding entry in column (2), originating in the countries as specified in the corresponding entry in column (4), exported from the countries as specified in the corresponding entry in column (5), produced by the producers as specified in the corresponding entry in column (6), and imported into India, a provisional anti-dumping duty at the rate equal to the amount as specified in the corresponding entry in column (7), in the currency as specified in the corresponding entry in column (9) and as per unit of measurement as specified in the corresponding entry in column (8) of the said Table, namely:-

Table

S. No.	Tariff item	Description of goods	Country of origin	Country of exports	Producer	Duty amount	Unit	Currency
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)
1.	39041010 39041020 39041090	'Poly Vinyl Chloride Paste Resin', also known as	People's Republic of China	Any country including People's Republic of China	Formosa Industries (Ningbo) Co., Ltd.	546	Metric Tonne	US\$

	39042100 39042200 39043010 39043090 39049000 39044000 39049090 ##	Emulsion PVC Resin #						
2.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	People's Republic of China	Any country including People's Republic of China	Shenyang Chemical Co., Ltd.	115	Metric Tonne	US\$
3.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	People's Republic of China	Any country including People's Republic of China	Any producer other than SN 1 and 2 mentioned above	600	Metric Tonne	US\$
4.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Any country other than subject countries	People's Republic of China	Any producer	600	Metric Tonne	US\$
5.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Korea RP	Any country including Korea RP	Hanwha Solutions Corporation	Nil	Metric Tonne	US\$
6.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Korea RP	Any country including Korea RP	Any producer other than SN 5 mentioned above	41	Metric Tonne	US\$

7.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Any country other than subject countries	Korea RP	Any producer	41	Metric Tonne	US\$
8.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Malaysia	Any country including Malaysia	Kaneka Paste Polymers Sdn. Bhd.	317	Metric Tonne	US\$
9.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Malaysia	Any country including Malaysia	Any producer other than SN 8 mentioned above	375	Metric Tonne	US\$
10.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Any country other than subject countries	Malaysia	Any producer	375	Metric Tonne	US\$
11.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Taiwan	Any country including Taiwan	Formosa Plastics Corporation	118	Metric Tonne	US\$
12.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Taiwan	Any country including Taiwan	Any producer other than SN 11 mentioned above	168	Metric Tonne	US\$
13.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Any country other than subject countries	Taiwan	Any producer	168	Metric Tonne	US\$

14.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Thailand	Any country including Thailand	TPC Paste Resin Co., Ltd.	195	Metric Tonne	US\$
15.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Thailand	Any country including Thailand	Any producer other than SN 14 mentioned above	252	Metric Tonne	US\$
16.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Any country other than subject countries	Thailand	Any producer	252	Metric Tonne	US\$
17.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Norway	Any country including Norway	Any producer	328	Metric Tonne	US\$
18.	do	'Poly Vinyl Chloride Paste Resin', also known as Emulsion PVC Resin #	Any country other than subject countries	Norway	Any producer	328	Metric Tonne	US\$

#The following products are excluded from the scope of the product under consideration (PUC):

- (a) PUC with a K value below 60K*
- (b) PVC Blending Resin*
- (c) Co-polymers of PVC Paste Resin*
- (d) Battery separator resins*
- (e) The brand name "Biovyn" produced by Innovyn Europe Ltd.*

The customs classification is indicative only and not binding on the scope of the product under consideration."

2. The provisional anti-dumping duty imposed under this notification shall be effective for a period of six months (unless revoked, amended or superseded earlier) from the date of publication of this notification in the Official Gazette and shall be payable in Indian currency.

Explanation.- For the purposes of this notification, rate of exchange applicable for the purposes of calculation of such anti-dumping duty shall be the rate which is specified in the notification of the Government of India, in the Ministry of Finance (Department of Revenue), issued from time to time, in exercise of the powers conferred by section 14 of the Customs Act, 1962 (52 of 1962), and the relevant date for the determination of the rate of exchange shall be the date of presentation of the bill of entry under section 46 of the said Customs Act.

[F. No. CBIC-190354/63/2024-TRU Section-CBEC]

(Nitish Karnatak)
Under Secretary to the Government of India